

Brij Mohan v. State of U.P. — s.135 FIR not quashed; arrest safeguards and compounding

Allahabad High Court · Division Bench · 6 August 2014 · Criminal Misc. Writ Petition No. 13301 of 2014 · **s.135 FIR not quashed; CrPC arrest safeguards directed; compounding available**

HEADNOTE

Division Bench refused to quash an FIR under Section 135 of the Electricity Act, 2003, because it disclosed a cognizable offence. Arrest, if at all, of a person whose offence cannot attract more than seven years' imprisonment must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Brij Mohan filed a criminal miscellaneous writ petition to quash FIR dated 8 February 2014, Case Crime No. 67 of 2014, registered at P.S. Daurala, District Meerut, under Section 135 of the Electricity Act, 2003. Arrest had not been made. He argued that the FIR should be quashed; that a proved charge could not attract more than seven years' imprisonment, so arrest should not be mechanical; and that the offence was compoundable. The complainant and the State were represented.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash refused; arrest and compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not liable to be quashed. Where arrest has not been made and the offence cannot attract a sentence exceeding seven years, police must, if arrest is to be effectuated, comply with Section 41(1)(b) read with Section 41-A Cr.P.C.; breach may be complained of before the Magistrate. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Quash of a s.135 FIR refused as it disclosed a cognizable offence; arrest, if at all, tied to CrPC 41(1)(b)/41-A because sentence cannot exceed seven years; compounding left to the Supply Code, 2005. ¶ 1